General Information

New Mexico voters will be asked in 2026 to consider four proposed amendments to the state's constitution. Constitutional Amendment 1 would eliminate the governor's ability to pocket veto bills passed by the legislature, Constitutional Amendment 2 would allow school elections to be held at the same time as partisan elections, Constitutional Amendment 3 would establish nominating committees to provide lists of names to the governor to select members of boards of regents of state educational institutions and Constitutional Amendment 4 would allow salaries for state legislators. All four amendments will appear on the November 3, 2026 General Election ballot.

The Constitution of New Mexico provides that the legislature, by a majority vote of all members elected to each house, may propose amendments revising the constitution and that proposed amendments must then be submitted to the voters of the state for approval. A proposed amendment becomes part of the state's constitution if a majority of the votes cast in an election on the proposition is cast in its favor, unless the proposed amendment affects one of the sections for which a three-fourths' majority is required. (This year's proposed constitutional amendments do not affect one of those sections and, thus, need only a simple majority vote to be approved.) Proposed constitutional amendments become effective upon approval by the voters unless an effective date is provided within the text of the proposed amendment.

Proposed: Constitutional Amendments

The following constitutional amendments questions will appear on all ballots for the General Election on November 3, 2026:

Constitutional Amendment 1

PROPOSING AN AMENDMENT TO ARTICLE 4, SECTION 22 OF THE CONSTITUTION OF NEW MEXICO TO REQUIRE THE GOVERNOR TO PROVIDE VETO MESSAGES ON ALL BILLS VETOED IN WHOLE OR IN PART AND TO PROVIDE THAT ALL BILLS PASSED BY THE LEGISLATURE AND NOT ACTED ON BY THE GOVERNOR WILL BECOME LAW.

For: _____ Against: _____

Purpose

In 2025, the New Mexico Legislature passed Constitutional Amendment 1, which, if adopted, would amend Article 4, Section 22 of the Constitution of New Mexico to remove what has been referred to as the "pocket veto". The pocket veto occurs when, after the adjournment of the legislature, the governor does not sign a bill that was presented to the governor during the last three days of session. By not acting on the bill, the bill does not become law. Constitutional Amendment 1 proposes to flip this dynamic. If this proposed amendment is approved by voters, a bill presented to the governor during the last three days of the session would by default become law if the governor does not issue a veto message within 20 days after the legislature's adjournment. In order to veto a bill passed by the legislature, the governor would be required to provide a written, substantive explanation for the veto.

Arguments For

1. **Provides greater transparency to the public and the legislature regarding why a governor vetoed a bill.**

With the ability to pocket veto a bill, the governor can veto a bill passed by both chambers of the legislature without an explanation. This can leave the public and the legislature in the dark about what objections the governor had and does not provide information on how the bill might be reintroduced in the future in a manner that the governor would sign. By using the pocket veto, the governor is able to avoid explaining the governor's position on potentially politically sensitive pieces of legislation. Eliminating the pocket veto would ensure that a substantive explanation is given by the governor for the veto, the public knows the opinion of the governor on the legislation and the legislature understands how to address the governor's concerns.

2. **Potentially brings greater balance among the branches of government.**

The governor's ability to pocket veto a bill gives the governor great power over the enactment of laws passed by the legislature. With the elimination of the pocket veto, the legislature would have an increased chance of passed bills becoming law, especially for a politically fraught bill, because to veto a bill, the governor would have to be intentional about the veto and provide a reason. The proposed amendment would also provide an avenue for the judicial branch to weigh in on whether the governor has provided a "substantive explanation" for the veto if the explanation is challenged.

Arguments Against

1. **<u>This proposed amendment is unnecessary and could be overly burdensome.</u>**

The proposed amendment is unnecessary because the legislature currently can require the governor to provide a reason for vetoing a bill by presenting the bill to the governor before the last three days of a session. The legislature also has the option to override a governor's veto, regardless of the governor's rationale for pocket vetoing a bill. Further, with only 20 days to act after the adjournment of the legislature, providing a written, substantive explanation for every bill to be vetoed could be overly burdensome and create a logjam of work in the executive branch in the short time after session that the governor has to consider legislation for signature or veto. This could result in "bad bills" becoming law because the governor ran out of time before a veto message could be written.

2. **<u>The requirement to provide a "substantive explanation" is undefined.</u>**

To veto a bill, the governor would be required to provide a "substantive explanation" for the veto, but there is nothing in the proposed amendment to indicate what that would entail. This could lead to an increase in litigation between the legislative and executive branches at a cost to the taxpayers. Additionally, the litigation could delay the enactment of a bill, leaving the public in limbo as to whether or when the law will be in effect.